

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:

-----X
TODD WILSON,

Plaintiff,

-against-

Plaintiff designates
NEW YORK County as the
place of trial

CITY OF NEW YORK, P.O. CHRISTOPHER
VILLANUEVA and OFFICERS JOHN AND JAMES
DOE, names being fictitious and meant to designate
additional offending officers,

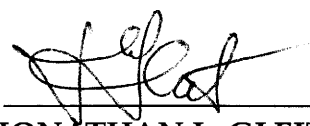
The basis of venue is:
CPLR 504 (3)

Defendants.
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
April 6, 2015


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Christopher Villanueva, Shield 9927 of the 25th Precinct
120 East 119th Street, New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
TODD WILSON,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. CHRISTOPHER VILLANUEVA
and OFFICER[S] JOHN AND JAMES DOE, names being
fictitious and meant to designate additional offending
officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF TODD WILSON

1. At the time of the commencement of this action, plaintiff TODD WILSON was
and still are residents of the County of New York, City and State of New York.
2. That the causes of action alleged herein arose in the County of New York, City
and State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about April 11, 2014, P.O. CHRISTOPHER VILLANUEVA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about April 11, 2014, at approximately 6:50 P.M., P.O. CHRISTOPHER VILLANUEVA was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about April 11, 2014, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

8. That on and about April 11, 2014 at approximately 6:50 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

9. That on or about April 11, 2014 at approximately 6:50 P.M., at or near the front of 2289 5th Avenue, New York, New York, the plaintiff TODD WILSON was improperly

arrested and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine TODD WILSON .

10. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

11. That during the aforementioned arrest, the defendants did utilize excessive, unnecessary, unjustified force upon plaintiff.

12. That during the aforementioned event, the defendant CHRISTOPHER VILLANUEVA and/or P.O. 'JOHN DOE' did assault and batter plaintiff TODD WILSON.

13. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement thereby causing fright, shock, emotional distress and physical consequences.

14. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when he knew, or in the exercise of reasonable care, should have known they were false.

15. That the defendants P.O. CHRISTOPHER VILLANUEVA and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer unjust prosecution initiated without probable cause that the prosecution would succeed.

16. That defendants, their agents, servants and/or employees continued to prosecute plaintiff TODD WILSON and deny and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

17. The commencement of the criminal proceedings, which was assigned Docket No. 2014BX028990 in the Criminal Court of the City of New York, New York County, was malicious and begun in malice and without probable cause that the proceeding could succeed by the Defendants.

18. That all criminal charges brought against plaintiff TODD WILSON regarding the incidents of April 11, 2014 were dismissed by Judge Ann Scherzer on October 22, 2014, and the criminal proceedings were terminated in plaintiff's favor.

19. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution of TODD WILSON.

20. As a result of the malicious prosecution, plaintiff's liberty was threatened and he suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured.

21. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and to subjugate minority population without reprimand to the offending officers.

22. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, , and testify falsely so often, omitting such facts or fabricating evidence under pretext, that such conduct is considered routine by the offending officers, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigations to deter actions like those complained of herein.

23. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in

the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

24. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority men without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting all persons for conduct that is not criminal.

25. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009.

26. Furthermore the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent persons for such charges as obstructing governmental administration and resisting arrest, as a catch all for behaviors that are not illegal but are utilized in ill-fated attempts at justifying the defendant's own unlawful use of unjustified, unnecessary, excessive force.

27. Said practice and procedure of falsely arresting innocent persons on such charges as resisting arrest is well evidence by defendants' own compstat and other statistical tabulations, as well as those of the district attorney, the civilian complaint review board and the bureau of internal affairs.

28. Statistical analysis of the 51,503 criminal cases in New York City from 2009 through 2014 charging resisting arrest show that 5% of officers account for 40% of resisting arrest charges and 15% of officers account for nearly 75% of such cases and 60% of officers made arrests while never charging resisting arrest.

29. Moreover, patterns of such the aforesaid conduct of arresting persons for such charges as disorderly conduct in an ill fated attempt at justifying defendants' unnecessary unjustified excessive force and without individualized reasonable or probable cause of such charges is demonstrated because multiple individuals have been subject to the same unjustified and fabricated charges, to wit, as a sample and small example: ANTHONY COOPER was wrongfully subject to similar charges after being assaulted by arresting officer on June 7, 2009 in front of 841 East 227th Street, Bronx, New York; ESHAWN SUTTON was wrongfully subject to similar charges after being assaulted by P.O. JOEY RODRIGUEZ on or about August 17, 2010 at approximately 1:55 P.M., in front of 500 East 165th Street, Bronx, New York ; ARAMIS RODRIGUEZ was

wrongfully subject to similar charges after being assaulted by Det. LISANDRO RIVERA on or about April 10, 2009 at approximately 2:30 P.M., at the southeast corner of Faile Street and Westchester Ave. , Bronx, New York; JUAN VALDIVIA was wrongfully subject to similar charges after being assaulted by P.O. JAIRO GONZALEZARANGO and P.O. ROBERT, GAZSY on or about January 16, 2010 at approximately 7:15 P.M., in front of 106 West 143rd Street, New York, New York; BENETIO MYTON was wrongfully subject to similar charges after being assaulted by P.O. ELEANOR WALSH and P.O. BRANDON RAVELO on or about March 30, 2010 at approximately 8:45 P.M., at or neat the intersection of East 220th Street and White Plains Road, Bronx, New York, ANTOINE LEARY was wrongfully subject to similar charges after being assaulted by Det. DANIXON CABRERA on February 18, 2011 inside 916 Stebbins Avenue, Bronx, New York; CHRISTINA ROSAS, JORGE ROSAS BETSY CAMILO wrongfully subject to similar charges after being assaulted by officers of the NYPD on June 6, 2011 and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments.

30. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

31. The herein above described actions and omissions, engaged in under the color of law by the defendants and their commanders and supervisors, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, institutionalized procedure and act, deprived the plaintiff of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of his person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

32. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

33. That as a result of the foregoing, the plaintiff TODD WILSON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF PLAINTIFF TODD WILSON

34. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 33 as though more fully set forth herein.

35. That on or about July 7, 2014, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by delivering a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant

36. Defendant CITY OF NEW YORK, did conduct, and plaintiff TODD WILSON did give sworn testimony at a General Municipal Law §50h hearing on January 15, 2015.

37. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

38. That on or about April 11, 2014 at approximately 6:50 P.M., at or near the front of 2289 5th Avenue, New York, New York, the plaintiff TODD WILSON was improperly arrested, and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine TODD WILSON .

39. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

40. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

41. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement, thereby causing fright, shock, emotional distress and physical consequences.

42. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

43. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

44. That as a result of the foregoing, the plaintiff TODD WILSON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF TODD WILSON**

45. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 44 as though more fully set forth herein.

46. That during the aforesaid arrest of plaintiff, the defendants did use excessive, unnecessary, unjustified force.

47. As a result of the assault upon plaintiff by defendants' use of excessive, unnecessary, unjustified force, plaintiff TODD WILSON was injured, damaged, insulted and caused to suffer pain, discomfort and other substantial suffering.

48. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

49. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

50. That as a result of the foregoing, the plaintiff TODD WILSON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF TODD WILSON

51. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 50 as though more fully set forth herein.

52. That on or about October 30, 2014, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by delivering a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant

53. Defendant CITY OF NEW YORK, did conduct, and plaintiff TODD WILSON did give sworn testimony at a General Municipal Law §50h hearing on January 15, 2015.

54. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

55. That the defendants P.O. CHRISTOPHER VILLANUEVA and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal actions against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecution would succeed.

56. That defendants, their agents, servants and/or employees continued to prosecute plaintiff TODD WILSON and deny and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

57. The commencement of the criminal proceedings, which was assigned Docket No. 2014BX028990 in the Criminal Court of the City of New York, New York County, was malicious and begun in malice and without probable cause that the proceedings could succeed by the Defendants.

58. That all criminal charges brought against plaintiff TODD WILSON regarding the incidents of April 11, 2014, were dismissed by Judge Ann Scherzer on October 22, 2014, and the criminal proceedings were terminated in plaintiff's favor.

59. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution of TODD WILSON .

60. As a result of the malicious prosecution, plaintiff TODD WILSON was deprived of liberty and suffered the humiliation, mental anguish, indignity and frustration of unjust criminal prosecution, and was otherwise damaged and injured.
61. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.
62. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.
63. That as a result of the foregoing, the plaintiff TODD WILSON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF TODD WILSON

64. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 63 as though more fully set forth herein.
65. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

66. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper use of force and conducting of the arrest of individuals.

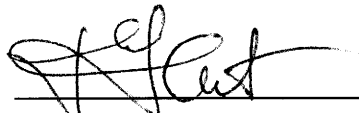
67. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiff was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damages in a sum which exceeds the jurisdiction of all lower Courts.

68. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First ,

Second, Third, Fourth and Fifth Causes of Action, inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: New York, N.Y.
April 6, 2015


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

TODD WILSON

888 Grand Concourse
Suite 1-O
New York, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. Christopher Villanueva, Shield 9927 of the 25th Precinct
120 East 119th Street, New York, NY 10035

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

TODD WILSON

I have read the annexed

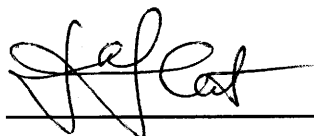
COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiffs is that Plaintiffs are not presently in the county wherein the attorney for the plaintiff maintains his office.

DATED: Bronx, N.Y.

April 6, 2015

A handwritten signature in black ink, appearing to read 'Jonathan L. Gleit', written over a horizontal line.

JONATHAN L. GLEIT, ESQ.